

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #9	CCRB Case #: 201509548	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/20/2015 4:10 PM	Location of Incident: Columbus Circle	Precinct: 18	18 Mo. SOL 4/20/2017	EO SOL 4/20/2017	
Date/Time CV Reported Tue, 11/10/2015 10:40 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 11/10/2015 10:40 AM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Jaspreet Gill	19646	950495	MTN PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. SGT Craig Nilsen	04508	937187	MTN PCT		
Officer(s)	Allegation	Investigator Recommendation			
A.POM Jaspreet Gill	Abuse: PO Jaspreet Gill stopped § 87(2)(b)				

Case Summary

On November 10, 2015, § 87(2)(b) filed this complaint via the CCRB website. There is no video footage of this incident.

On October 20, 2015, at approximately 4:10 p.m. § 87(2)(b) was riding his skateboard inside of Columbus Circle Park in Manhattan. PO Jaspreet Gill of the 18th Precinct, known as Midtown North, approached § 87(2)(b) alleged that PO Gill gave § 87(2)(b) a warning about skateboarding, that § 87(2)(b) stopped skateboarding and sat down within Columbus Circle Park, and then a couple minutes later, PO Gill stopped him (**Allegation A**).

PO Gill handcuffed § 87(2)(b) and searched his person before transporting § 87(2)(b) to the 18th Precinct stationhouse. PO Gill vouchered § 87(2)(b)'s skateboard as arrest evidence (Board Review 01). § 87(2)(b) was released with three summonses, each of which was issued by PO Gill, and each summons was for a park rules violation related to skateboarding within Columbus Circle Park (Board Review 02).

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) via email on December 2, 2015. § 87(2)(b) responded via email on December 2, 2015, that he did not wish to mediate his complaint, § 87(2)(b) (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A Notice of Claim inquiry was submitted with the New York City Comptroller's Office on January 15, 2016 (Board Review 05). The results will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint in which § 87(2)(b) is involved (Board Review 06).
- PO Jaspreet Gill has been a member of service for four years and there are three substantiated CCRB allegations against him, all for force, and each with a recommendation of charges. All of the substantiated allegations against PO Gill are from CCRB case number 201509201 in which PO Gill interacted with a skateboarder inside of Columbus Circle Park in Manhattan (Board Review 07).
 - PO Gill is also the subject of three allegations in a pending CCRB investigation, case number 201510479, in which PO Gill allegedly interacts with a bicyclist inside of Columbus Circle Park in Manhattan (Board Review 08).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

§ 87(2)(g)

- § 87(2)(g)

- § 87(2)(g)

Allegation A –Abuse of Authority: PO Jaspreet Gill stopped § 87(2)(b)

On October 20, 2015, at approximately 4:10 p.m. § 87(2)(b) was skateboarding inside of Columbus Circle Park in Manhattan, where skateboarding is prohibited. PO Gill approached § 87(2)(b) inside of Columbus Circle Park.

§ 87(2)(b) testified that PO Gill approached him and told him to, “Get out of here,” (Board Review 11). PO Gill corroborated that when he originally approached § 87(2)(b) he instructed § 87(2)(b) to get off his skateboard and leave the park (Board Review 12).

§ 87(2)(b) testified that he asked PO Gill if the sign in Columbus Circle Park said ‘no skateboards’ or ‘no skateboarding,’ and PO Gill indicated that it was the latter. § 87(2)(b) testified that he told PO Gill that he would take the warning, and that he walked away from PO Gill. PO Gill testified that after instructing § 87(2)(b) to get off his skateboard and leave the park that § 87(2)(b) rode on his skateboard away from him.

Both § 87(2)(b) and PO Gill testified that after the initial interaction, § 87(2)(b) sat down inside Columbus Circle Park. § 87(2)(b) testified that approximately two minutes later, PO Gill approached him and told him that he had previously ordered him to leave. PO Gill corroborated that he again approached § 87(2)(b) and told him this, but he did not indicate that there was a delay from the initial interaction.

§ 87(2)(b) testified that he explained to PO Gill that he was no longer skateboarding and that he was waiting for a friend. PO Gill testified that he explained to § 87(2)(b) that he would be issued a summons. Both § 87(2)(b) and PO Gill testified that § 87(2)(b) did not cooperate in providing his identification to PO Gill.

PO Gill proceeded to handcuff § 87(2)(b) search him, transport him to the 18th Precinct stationhouse, voucher his skateboard as evidence, and release him with three summonses. Two of the summonses mention that § 87(2)(b) was observed skateboarding at the base of a monument inside Columbus Circle Park. The other summons mentions that PO Gill asked § 87(2)(b) to leave after he was observed to be grinding on the base of a monument inside Columbus Circle, and § 87(2)(b) refused to leave the park.

§ 87(2)(g) [Redacted]
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[Redacted]
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§ 87(2)(g) [Redacted]
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§ 87(2)(g) [Redacted]
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Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date